

		(4) the denials of factual contentions are warranted on the evidence or, if specifically so identified, are reasonably based on a lack of information or belief. (CCP §128.7(b).) If a pleading does not meet those conditions, a party may bring a motion for sanctions. (CCP §128.7(c)(1).) The purpose of permitting such a motion is remedial, not punitive. The goal is not to punish the offender but to promote compliance and deter frivolous filings. (<i>Malovec v. Hamrell</i> (1990) 70 Cal.App.4th 434, 440.) The determination of violation is made under an objective standard. (<i>Bockrath v. Aldrich Chem. Co., Inc.</i> (1999) 21 Cal.4th 71, 82.) A claim is “objectively unreasonable” if any reasonable attorney would agree that it is totally and completely without merit. (<i>Peake v. Underwood</i> (2014) 227 Cal.App.4th 428, 440.) Here, Defendant served a safe harbor letter with a copy of the motion attached on Plaintiffs on 10/3/24. (Ainslie Decl. ¶6, Exh. 3.) While the court notes that the motion is not attached to the copy of the letter that was supplied to the court, the court assumes for purposes of this ruling that the motion was properly attached. Plaintiffs have not raised any objections to the service of the safe harbor letter. Defendant contends that filing and prosecuting the Complaint was objectively unreasonable because it was barred in its entirety by res judicata. While it is true that on 1/9/25 this Court granted Defendant’s Motion for Judgment on the Pleadings, finding that the action is barred by res judicata based on an earlier small claims action, the Court does <i>not</i> find that filing and prosecuting the Complaint was objectively unreasonable. (ROA 68.) The determination as to whether res judicata applied in this instance was not straightforward. It was not objectively unreasonable to attempt to pursue Plaintiffs’ claims. Accordingly, the motion is DENIED. Defendant’s requests for judicial notice are granted. Defendant to give notice.
8.	30-2022-01252770 Brown vs. Azera	1. Motion to Compel Answers to Form Interrogatories 2. Motion to Compel Production 3. Motion to Deem Facts Admitted Plaintiff moves to compel Responses to Requests for Production, Set One and Form Interrogatories – Construction Litigation, Set One, and to deem Requests for Admission, Set Two, admitted against Defendant Martin Thibault. Plaintiff requests \$1,000 in sanctions for the motion to compel production. Plaintiff does not request sanctions for the other two motions. In opposition, Defendant argues that the discovery responses were timely provided. The Court agrees.

Plaintiff propounded all three discovery sets at issue on December 18, 2024. Pursuant to Code, discovery responses must be served 30 days after the discovery is propounded. (See Code Civ. Proc., §§ 2030.260, 2031.260, and 2033.250.) 30 days after December 18, 2024 is Friday, January 17, 2025.

Pursuant to Code of Civil Procedure section 1010.6(a)(3)(B), when a document is served electronically, “[a]ny period of notice, or any right or duty to do any act or make any response within any period or on a date certain after the service of the document, which time period or date is prescribed by statute or rule of court, *shall be extended after service by electronic means by two court days*, but the extension shall not apply to” certain notices that are not relevant here. (Code Civ. Proc., § 1010.6, subd. (a)(3)(B).) Thus, because service was completed by email, the deadline for Defendant to provide discovery responses was extended by two court days.

Two court days after Friday, January 17, 2025 is Wednesday, January 22, 2025. Defendant served responses to the discovery at issue on Wednesday, January 22, 2025 and, therefore, the responses were timely and objections were not waived. Defendant also provided evidence that supplemental discovery responses were provided – further making this motion MOOT.

The Motions are **DENIED** as MOOT as timely responses were provided to the discovery and supplemental discovery responses have since been provided.

Since responses were provided, these motions should have been filed as motions to compel *further* responses, *with the requisite separate statement*. (Code Civ. Proc., §§ 2030.300, 2031.310, and 2033.290 and Cal. Rules of Court, rule 3.1345.)

To the extent the 45 day deadline to file a motion to compel further has passed for the discovery requests at issue, Plaintiff is given **20 days** leave to file motions to compel *further* responses as to the discovery responses at issue in Requests for Production, Set One and Form Interrogatories – Construction Litigation, Set One, and Requests for Admission, Set One.

No sanctions are awarded.

The Court also notes that all filings shall be served on the parties who have appeared in this case pursuant to Code of Civil Procedure section 1014.

Defendant to give notice.